

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO
MECHANICAL CORP. d/b/a Curtiss-
Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MGB

ORDER

Plaintiff, originally represented by counsel, filed this employment discrimination action in state court. (Dkt. No. 1-1.) Defendants removed the case to federal court on January 21, 2025. (Dkt. No. 1.) Shortly thereafter, Plaintiff's counsel moved to be relieved as counsel. (Dkt. No. 12.) On February 20, 2025, the Court granted counsel's motion. (Dkt. No. 19.) Plaintiff is now proceeding *pro se*. This case was automatically referred to the undersigned United States Magistrate Judge for all pretrial proceedings pursuant to the provisions of 28 U.S.C. § 636(b)(1)(A) and (B) and Local Rule 73.02(B)(2)(g), D.S.C.

With leave of the court, Plaintiff filed a Fourth Amended Complaint on August 27, 2025. (Dkt. No. 79.) Presently before the Court is Plaintiff's Motion for Leave to File a Fifth Amended Complaint (Dkt. No. 302). For the reasons discussed in greater detail below, Plaintiff's motion (Dkt. No. 302) is **DENIED**.

FACTUAL SUMMARY

According to the Fourth Amended Complaint, Plaintiff alleges that she is an African American female residing in South Carolina. (Dkt. No. 79 at ¶¶ 30–31.) In April 2022, Defendant

Curtiss Wright Electro Mechanical Corp., doing business as Curtiss-Wright Steam and Air Solutions (hereinafter “Curtiss-Wright”), hired Plaintiff as an NDT technician. (*Id.* at ¶ 32.) Plaintiff was considered a good employee until she first complained about differential treatment. (*Id.* at ¶ 33.)

In November 2022, Plaintiff filed a complaint asserting that an Executive Assistant was harassing her. (*Id.* at ¶ 34.) Plaintiff alleges that nothing was done regarding the incident, but her work environment became substantially different. (*Id.* at ¶ 35.)

On May 4, 2023, Plaintiff filed a complaint with the Office of the Naval Inspector General. (*Id.* at ¶ 36.) The Hotline and Investigations Division informed Plaintiff that if she wanted to pursue her claims, she would need to provide specific details and complete the Navy Hotline Complaint Form. (*Id.*)

On May 19, 2023, Plaintiff was conducting a Magnetic Particle Test on large diaphragms (a turbine component) with Joseph Couillard. (*Id.* at ¶ 37.) In the middle of the test, Brian Fogarty¹ arrived and began to scream at Plaintiff and “violently point his finger” at her. (*Id.*) Fogarty continued to yell and scream at Plaintiff for several minutes, and Plaintiff backed away from Fogarty, shocked at his behavior. (*Id.*) When Fogarty finished his tirade, Plaintiff informed him that she would tell Joe Cabaup, NDT Level III Manager, about the incident. (*Id.*) Fogarty stated, “Good,” and stomped out. (*Id.*) Plaintiff reported Fogarty’s behavior to management and Human Resources, but nothing was done to Fogarty. (*Id.* at ¶ 38.)

Plaintiff filed a charge of discrimination with the Equal Employment Opportunity Commission (“EEOC”) on May 31, 2023, alleging workplace harassment, sex discrimination, and

¹ The Fourth Amended Complaint references “Brian Fogarty.” (Dkt. No. 79.) However, subsequent filings indicate that the proper spelling of this name is “Brian Fogarty.” (*See, e.g.*, Dkt. No. 242.) For purposes of clarity, the undersigned has used the proper spelling of Mr. Fogarty’s name throughout this Order.

race discrimination based on the May 19, 2023 incident with Fogarty. (*Id.* at ¶ 39.) Plaintiff alleges that the EEOC issued the right to sue regarding this charge on June 5, 2023, but she did not file a cause of action with the Court for fear of retaliation. (*Id.* at ¶ 40.)

On June 20, 2023, Plaintiff sent a letter to the CEO of Curtiss-Wright, Lynn M. Bamford, regarding the treatment of African-American women at the Summerville facility. (*Id.* at ¶ 41.) Plaintiff contacted CEO Bamford again on June 28, 2023, specifically stating that Plaintiff was being subjected to wage discrimination, discrimination based on sex, favoritism, ageism, bullying, harassment, and a hostile work environment. (*Id.* at ¶ 42.) Plaintiff stated that there was a culture of abusive and aggressive behaviors towards women that was not being addressed and that violated Curtiss-Wright's own policies. (*Id.*) Plaintiff informed CEO Bamford that incidents involving bullying, harassment, hostile work environment, and discrimination had been reported to Defendant Stephanie Lanier ("Defendant Lanier") in Human Resources, but there had been no investigation, determination, or resolution. (*Id.*)

On July 12, 2023, Plaintiff reported to Defendant Lanier in Human Resources that Patrick Ingram was not fulfilling his duties as one of the NDT Techs, including failing to perform his daily inspections. (*Id.* at ¶ 43.) Plaintiff complained of "blatant and continuous favoritism" shown to Ingram since July 2022. (*Id.*) On July 14, 2023, Defendant Lanier falsified a disciplinary action report by stating that she had given it to Plaintiff. (*Id.* at ¶ 44.)

On July 20, 2023, Defendant Lanier informed Plaintiff that Fogarty was giving Plaintiff feedback, not bullying her. (*Id.* at ¶ 45.) On July 25, 2023, Plaintiff was required to attend a meeting with Defendant Lanier, Mary Workoff, and Antonio Coleman regarding bullying, discrimination, and favoritism. (*Id.* at ¶ 46.) Workoff and Lanier informed Plaintiff that the bullying incident with

Fogarty had been handled, though it may not have been what Plaintiff wanted. Plaintiff asked how many chances a person had to bully someone, and Lanier responded, “It depends.” (*Id.*)

On July 27, 2023, Plaintiff emailed Coleman and Defendant Lanier, stating that the accusation that she had bullied Ingram was a clear example of favoritism and discrimination based on race. (*Id.* at ¶ 47.) She also complained that Fogarty’s bullying and hostile work environment were not “constructive feedback.” (*Id.*)

On July 31, 2023, Plaintiff received an email from Vice President/General Counsel/Corporate Secretary Paul Ferdenzi, stating that CEO Bamford had forwarded Plaintiff’s complaint to him for handling and that an independent investigation would be performed on her claims. (*Id.* at ¶ 48.) On August 7, 2023, Plaintiff informed Ferdenzi that she had sent the materials to him regarding her complaint a month ago and that she was contacting news outlets. (*Id.* at ¶ 49.) Ferdenzi responded, “Please feel free to do whatever you believe is best for you. If you are telling me these things to influence our investigation, it won’t work. We will conduct an independent an[d] objective review of your concerns and then let you know what we determine.” (*Id.*)

On August 10, 2023, Plaintiff filed a complaint with the Naval Inspector General (NAVINGSGEN). (*Id.* at ¶ 50.) The complaint asserted that Fogarty had violated policies regarding bullying based on sex and that Curtiss-Wright refused to address any of her complaints to managers or Human Resources. (*Id.*) Plaintiff also asserted that Defendant Curtiss-Wright covered up all incidents and complaints. (*Id.*)

On August 26, 2023, Plaintiff filed another complaint with NAVINGSGEN. (*Id.* at ¶ 51.) This complaint addressed Fogarty’s treatment of women and asserted that Curtiss-Wright’s investigation into her complaints had taken over three months and nothing had been done. (*Id.*) She specifically complained as follows: “There is a culture of abusive behavior towards women.

There is no one holding perpetrators accountable for their actions even when there are complaints filed. Management is too concerned with protecting their friends and not following laws and their own code of conduct.” (*Id.*) Plaintiff informed NAVINSGEN that she was being retaliated against, that she had filed complaints with the EEOC, and that the EEOC had informed her that there was not enough evidence to go forward with a charge of discrimination. (*Id.*)

On September 18, 2023, Curtiss-Wright fired Mary Workoff, the plant manager at the Summerville, SC facility. (*Id.* at ¶ 52.) Plaintiff’s timecard was altered for September 26–29, 2023. (*Id.* at ¶ 53.)

On September 26, 2023, Plaintiff filed a formal complaint with Human Resources EthicsPoint for Curtiss-Wright. (*Id.* at ¶ 54.) Plaintiff complained that she was being blocked from printing due to the fact that she was using emails to report Defendant Curtiss-Wright to the Department of the Navy. (*Id.*) Plaintiff complained that Defendant Lanier harassed and bullied Plaintiff, failed to treat Plaintiff with respect, and disciplined Plaintiff in retaliation for Plaintiff’s complaints to the EEOC, the Department of the Navy, and the Inspector General. (*Id.*)

On September 28, 2023, Plaintiff filed another complaint with NAVINSGEN alleging that she was being subjected to retaliation and hostile work environment and that she had been verbally counseled and threatened with termination. (*Id.* at ¶ 55.)

Plaintiff filed a second charge of discrimination with the EEOC on October 5, 2023. (*Id.* at ¶ 56.) This second charge alleged that she was subjected to workplace harassment on May 19, 2023, when Fogarty yelled at her and repeatedly waved his finger in her face after becoming upset at her for not checking the QPC Code. (*Id.*) The second charge further alleged that after Plaintiff filed a complaint of discrimination, she was subjected to retaliation when her printing capabilities were disabled multiple times and when her work hours were adjusted without her knowledge. (*Id.*)

Plaintiff alleged discrimination based on sex and race. (*Id.*) The EEOC issued a right to sue regarding Plaintiff's second charge on October 6, 2023. (*Id.* at ¶ 57.)

On October 16, 2023, Plaintiff learned that her Ethics complaint was determined to be without merit. (*Id.* at ¶ 58.)

On November 7, 2023, Plaintiff filed another complaint with NAVINSGEN and the Department of Labor's Office of Federal Contract Complaint (OFCCP) regarding her work environment and retaliation, specifically stating that her time was being tampered with; that Curtiss-Wright was not giving her the practical exam she needed to become certified, which negatively impacted her pay; that male employees were being paid more per hour; and that Curtiss-Wright was failing to convert certain individuals from contract to direct employees. (*Id.* at ¶¶ 59, 67–68.)

On November 14, 2023, Plaintiff received a final written warning. (*Id.* at ¶ 60.) Plaintiff went to HR and accused Defendant Lanier of lying on Plaintiff's disciplinary action. (*Id.*) "In order to not appear threatening, . . . Plaintiff immediately backed away from [Defendant] Lanier's desk and did not make any statements but sat in a chair several feet away from Lanier." (*Id.*) However, Defendant Lanier later lied when she told others that Plaintiff had stood over her and been threatening. (*Id.*) As a result, Plaintiff was suspended for alleged abusive and unprofessional behavior, even though Fogarty had not been suspended for his behavior towards Plaintiff in May. (*Id.*)

On November 15, 2023, a co-worker told Plaintiff that Defendant Shane Sablotsky and others were telling employees that Plaintiff had been suspended because she was combative and threw water on a computer during a meeting. (*Id.* at ¶ 61.)

On November 20, 2023, Defendant Lanier sent Plaintiff an email informing her that if she wanted her personal items from her locker, Defendant Lanier would mail them to her. (*Id.* at ¶ 62.)

On December 1, 2023, Plaintiff left a voicemail for April James in Human Resources, inquiring about the status of her suspension. (*Id.* at ¶ 65.) Plaintiff subsequently received a letter dated November 21, 2023, informing her that she had been terminated effective November 21, 2023. (*Id.* at ¶¶ 63, 66.) Plaintiff was replaced by a Caucasian male. (*Id.* at ¶ 78.)

On December 14, 2023, Plaintiff learned that the complaint she had filed with the OFCCP on November 7, 2023, had been transferred to the EEOC for investigation. (*Id.* at ¶¶ 67–68.) Plaintiff contacted the EEOC in January 2024 to find out the status of this complaint, but she did not receive a response. (*Id.* at ¶¶ 23–24.)

Plaintiff alleges that, in early 2024 and into 2025, Plaintiff experienced repeated cyber-intrusions and physical surveillance as follows:

- Her personal devices displayed unauthorized log-in attempts, corrupted files, and system override messages after she pursued her complaints.
- While on mandatory work travel in Yuma, Arizona in April of 2024, Plaintiff was followed by an unknown woman; later confirmed on hotel surveillance, which Plaintiff reported to hotel management.
- On April 22, 2025, her personal vehicle's infotainment system played unsolicited audio and broadcast her private calls without consent.

(*Id.* at ¶ 99.) Plaintiff alleges that “Defendants were aware of Plaintiff’s protected disclosures yet took no steps to halt the hacking or surveillance and instead coordinated adverse actions culminating in her termination.” (*Id.* at ¶ 100.)

On May 2, 2024, Plaintiff filed her third charge of discrimination with the EEOC, alleging retaliation and race and sex discrimination from December 6, 2022, through November 21, 2023. (*Id.* at ¶¶ 25–26.) The EEOC issued its right to sue to Plaintiff on November 19, 2024. (*Id.* at ¶ 28.) Plaintiff filed her initial Complaint in this civil action on December 17, 2024. (Dkt. No. 1.)

LEGAL STANDARD

Rule 15(a) of the Federal Rules of Civil Procedure allows a plaintiff, subject to certain time limitations, to amend a pleading once as a matter of course. *See* Fed. R. Civ. P. 15(a). Otherwise, a plaintiff may amend the complaint only with leave of the court or with the consent of the defendant. *See id.*; *see also* *Laber v. Harvey*, 438 F.3d 404, 426 (4th Cir. 2006). Rule 15(a) provides that courts “should freely give leave [to amend] when justice so requires.” Leave should be granted “[i]n the absence of . . . undue delay, bad faith or dilatory motive on the part of the movant, repeated failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party by virtue of allowance of the amendment, [or] futility of amendment.” *Foman v. Davis*, 371 U.S. 178, 182 (1962).

A party who requests leave to amend after a deadline set by a court’s scheduling order must meet the requirements of Rule 15, but also show that there is good cause to modify the scheduling order under Rule 16(b)(4) of the Federal Rules of Civil Procedure. *Forstmann v. Culp*, 114 F.R.D. 83, 85 (M.D.N.C. 1987); *see also* *Nourison Rug Corp. v. Parvizian*, 535 F.3d. 295, 298 (4th Cir. 2008) (“Given their heavy case loads, district courts require the effective case management tools provided by Rule 16. Therefore, after the deadlines provided by a scheduling order have passed, the good cause standard must be satisfied to justify leave to amend the pleadings.”). The good cause standard under Rule 16 “focuses on the timeliness of the amendment and the reasons for its tardy submission; the primary consideration is the diligence of the moving party.” *Montgomery v. Anne Arundel Cnty., Maryland*, 182 F. App’x 156, 162 (4th Cir. 2006). Moreover, “the focus of the inquiry is upon the moving party’s reasons for seeking modification. If that party was not diligent, the inquiry should end.” *Marcum v. Zimmer*, 163 F.R.D. 250, 254 (S.D.W. Va. 1995) (citations and emphasis omitted).

DISCUSSION

After careful consideration, the undersigned finds that Plaintiff's Motion for Leave to Amend (Dkt. No. 302) must be **DENIED**. At the outset, this Court has already allowed Plaintiff to amend her complaint four times, (Dkt. Nos. 1-1, 7, 8, 48, 79), and the deadline to file motions to amend the pleadings expired on August 27, 2025. (Dkt. No. 53.) What is more, Plaintiff's Motion for Leave to File a Fifth Amended Complaint (Dkt. No. 302) explains that Plaintiff seeks to further amend her Fourth Amended Complaint to "reorganize[]" and "clarify" the factual allegations and legal claims asserted. (*Id.* at 1.) She claims that "[t]he proposed Fifth Amended Complaint corrects structural pleading issues, organizing the factual allegations chronologically, and separates each cause of action into distinct counts for clarity." (*Id.*) Plaintiff claims that "[t]he amended pleading also incorporates additional factual allegations and administrative developments, including the issuance of a Right-to-Sue notice by the Equal Employment Opportunity Commission" (*Id.*) According to Plaintiff, permitting the proposed Fifth Amended Complaint will "promote judicial efficiency by allowing the Court and Defendants to address a single operative complaint that clearly sets forth Plaintiff's claims" and will not prejudice Defendants because "the amendments primarily clarify and organize the allegations already asserted in this action." (*Id.* at 2.)

The undersigned must, however, disagree. First, Plaintiff's contentions regarding clarity, organization, and "a single operative pleading" are futile, as the Fourth Amended Complaint sets forth Plaintiff's claims sufficiently clearly and embodies the necessary "single operative pleading" in this case. (Dkt. No. 79.) What is more, the Fourth Amended Complaint already includes factual allegations pertaining to the Right-to-Sue notice Plaintiff referenced in her motion. (*Id.*)

Further, although Plaintiff does not mention this in her motion, the “additional factual allegations” Plaintiff seeks to add attempt to expand the retaliation claims asserted against Defendants in the Fourth Amended Complaint. (Dkt. No. 302-1 at 34–35.) Indeed, these allegations state:

104. Defendants, through counsel, demanded production of Plaintiff’s entire medical history, including records unrelated to the claims in this action.

105. Prior to these demands, Plaintiff provided a clinical summary letter from her treating therapist summarizing the emotional distress caused by Defendant’s conduct.

106. Despite receiving this clinical summary letter, Defendants continued to demand Plaintiff’s entire medical file.

107. Defendants also demanded production of Plaintiff’s social media accounts, tax returns, and information relating to Plaintiff’s personal business activities.

108. Plaintiff alleges these demands are overly broad and unrelated to the core employment discrimination claims at issue.

109. Plaintiff believes these actions were undertaken to intimidate and burden Plaintiff for pursuing her discrimination and retaliation claims.

110. These actions occurred after Plaintiff engaged in protected activity including filing charges of discrimination and initiating this lawsuit.

(*Id.*) Clearly, Plaintiff is attempting to expand her retaliation claims to include Defendants’ purported attempts to “intimidate and burden” her through their discovery requests. (*Id.*) Regardless of whether any such claim has merit, to add these underlying factual allegations at this late stage in the proceedings is plainly prejudicial to Defendants.

Additionally, the Court finds that Plaintiff has failed to satisfy the “good cause” standard for amending a complaint under Rule 16(b)(4). Plaintiff has failed to provide any justification for her belated attempt to expand her claims against Defendants and, as noted, Defendants would be highly prejudiced were the Court to permit these additional allegations. Indeed, the discovery

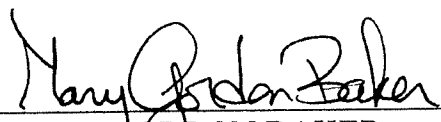
deadline in this case has long since expired, and dispositive motions are due in just a few days. (See Dkt. No. 53, noting discovery was due by November 5, 2025; Dkt. No. 237, noting limited extension of discovery deadline to January 30, 2026 for certain discovery at issue in pending motions; Dkt. No. 290, noting that dispositive motions remain due by March 31, 2026.) Plaintiff's Motion for Leave to Amend (Dkt. No. 302) is therefore **DENIED**.

CONCLUSION

For the foregoing reasons, Plaintiff's Motion for Leave to File a Fifth Amended Complaint (Dkt. No. 302) is **DENIED**.

IT IS SO ORDERED.

March 25, 2026
Charleston, South Carolina



MARY GORDON BAKER
UNITED STATES MAGISTRATE JUDGE

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Order on Motion to Stay

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U.S. District Court

District of South Carolina

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Case Number: 2:25-cv-00405-RMG-MGB

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TEXT ORDER denying [295] Motion to Stay. On February 18, 2026, Plaintiff filed a Motion to Stay (Dkt. No. 295) in which she asks the Court to: (1) stay all proceedings or, alternatively, stay enforcement of disputed discovery obligations, and (2) stay any ruling on Defendants' Motion for Sanctions (Dkt. No. 292) pending resolution of the Petition for Writ of Prohibition she filed in the United States Court of Appeals for the Fourth Circuit. Upon review, the undersigned sees no reason to stay the instant litigation and therefore DENIES Plaintiff's motion (Dkt.

No. 295). *

As the Court has previously noted, (Dkt. No. 290), Plaintiff's pending writ petitions do not automatically stay this case. See El-Bey v. North Carolina, No. 3:17-cv-272-FDW, 2017 WL 4707034, at *1 (W.D.N.C. Oct. 19, 2017) ("The Federal Rules of Civil Procedure do not provide for an automatic stay of proceedings in the district court while a petition for an extraordinary writ is pending in the appellate court."); Ellis v. U.S. Dist. Ct. for W. Dist. of Washington, 360 F.3d 1022, 1023 (9th Cir. 2004) ("[A] district court does not lose jurisdiction over a case merely because a litigant files an interlocutory petition for an extraordinary writ."). Although an appellate court may stay district court proceedings while a petition for extraordinary relief is pending, the jurisdiction of the district court is not interrupted absent such a stay. Woodson v. Surgitek, Inc., 57 F.3d 1406, 1416 (5th Cir. 1995). In her related Fourth Circuit case, Plaintiff has sought, but the Fourth Circuit has not yet granted, a stay of these proceedings pending the Fourth Circuit's consideration of Plaintiff's Petition for Writ of Prohibition. Unless and until informed otherwise by the Fourth Circuit, this Court is not foreclosed from ruling on the pending motions in this case and will continue to adjudicate Plaintiff's claims. Entered at the direction of Magistrate Judge Mary Gordon Baker on 03/20/2026.(kman,)

2:25-cv-00405-RMG-MGB Notice has been electronically mailed to:

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